

representative. In view of the sub-authorisation from UDL submitted by Mr U. at the oral proceedings, the only issue remaining was whether or not UDL was entitled to give such a sub-authorisation.

For an example of a professional representative entitled by a chain of sub-authorisations to make submissions on behalf a party, see T.1081/06.

In T.1676/08, the board had no reason in the circumstances of the specific case to doubt that Mr S, a legal practitioner entitled to act as a representative, was duly sub-authorised. Moreover, on the same day of the oral proceedings, the professional representative, Mr M, stated as a precautionary measure that he endorsed any submission made by Mr S during these oral proceedings.

In T.1693/10, the contested sub-authorisation given to a second professional representative had eventually been withdrawn. This second representative was regarded from then on as assisting the first representative as an "accompanying person" within the meaning of G.4/95 (OJ 1996, 412) but was not permitted to speak at the oral proceedings because at least one of the criteria laid down in that decision for such permission had not been met.

In T.2453/12 opponent 2's notice of opposition had been filed under the name of an already defunct company and rejected as inadmissible by the opposition division at the oral proceedings. Its representative had then been issued with authorisation to act for opponent 1 during the remaining proceedings. The patent proprietor (respondent) took the view that one opponent's representative could not now act for the other opponent too. The opponents argued that opponent 1's original representatives – who were anyway its employees – remained authorised to represent it and that the appeal lodged by those representatives was therefore admissible. Opponent 1 had merely issued opponent 2's representative with a sub-authorisation during the opposition proceedings. The board observed that, under Art.133(1) and (3) EPC, legal persons having their principal place of business in an EPC contracting state were not compelled to be represented by a professional representative in EPO proceedings and were instead free to have a duly authorised employee act for them. That applied irrespective of whether they chose also to authorise a professional representative in parallel.

4.4. Authorisation of an association of representatives

R.152(11) EPC provides that an authorisation of an association of representatives is deemed to be an authorisation of any representative who can provide evidence of being member of the association. On this point, see the Administrative Council's decision CA/D 9/13 of 16 October 2013 on the interpretation of the term "association of representatives" (OJ 2013, 500). For more information on this subject, see also the notice dated 28 August 2013 on matters concerning representation before the EPO (OJ 2013, 535).

As explained in J.8/10 (OJ 2012, 470), the EPO keeps a list of associations of representatives as an internal working tool which it does not publish.

In J.16/96 (OJ 1998, 347) the EPO Legal Division had informed a company X that its patents department could not be registered as an association of representatives. Such an association meant one consisting solely of professional representatives in private practice. The Legal Board concluded that there was no basis in the Convention for the EPO's practice of restricting R.101(9) EPC 1973 (now R.152(11) EPC) to professional representatives "in private practice". An **association** within the meaning of that provision could therefore **also** be formed by **professional representatives not in private practice**. There was no reason to interpret the term "association of representatives" in a way which limited its meaning. (J.16/96 cited on this point in T.656/98). As mentioned in the introduction to this point, Decision CA/D 9/13 endorsed the Legal Board's interpretation in J.16/96.

Case J.8/10 (OJ 2012, 470) was about whether legal practitioners too could belong to associations of representatives under R.152(11) EPC. The board interpreted R.152(11) EPC as referring to an association of professional representatives. Therefore, legal practitioners were not covered by the legal fiction of R.152(11) EPC (see also T.1846/11).

4.5. Termination of authorisation

According to R.152(8) EPC, a representative is deemed to be authorised until the termination of his authorisation has been communicated to the EPO.

In T.578/14 the board stated that if, or for as long as, the termination of an authorisation was not communicated to the EPO, the authorisation remained effective vis-à-vis the EPO even though, the contract between the party and its representative had been dissolved, or the party had – vis-à-vis the representative – revoked the authorisation that it had given him. In the case of a change of representative involving professional representatives, the provisions of Art. 1(2) of the decision of the President of the EPO (OJ SE 3/2007, 128, L.1.) also apply, i.e. usually either the termination of the authorisation of the previous representative is communicated to the EPO or the new representative files an individual authorisation (original and one copy) or a reference to a general authorisation already on file. In view of R.152(8) EPC and the decision of the President, the responsibility for informing the EPO about the termination of the contract between a party and its representative before the EPO lies with the represented party, irrespective of whether or not it has its residence in an EPC contracting state, or with its representative. It is only when the EPO receives such information that it might have to determine on the basis of the documents filed whether a contract between a party to the proceedings before the EPO and its representative has indeed been terminated. The board added that informing the EPO about an intention to change the representative could not be equated with a clear withdrawal of an authorisation under R.152(7) EPC or with the communication of the termination of the authorisation as mentioned in R.152(8) EPC. Both cases concern a procedural declaration which in the interest of legal certainty has to be unambiguous.

5. Oral submissions by an accompanying person

5.1. Enlarged Board's landmark decision G 4/95

In G 2/94 (OJ 1996, 401) and G 4/95 (OJ 1996, 412), the Enlarged Board answered questions referred to it in J 11/94 (OJ 1995, 596) and T 803/93 (OJ 1996, 204) as to whether, and if so in what circumstances, a person not qualified to act as a representative before the EPO (an "accompanying person") might make oral submissions on either legal or technical issues on a party's behalf during oral proceedings under Art. 116 EPC 1973 in ex parte or inter partes proceedings.

According to the decision G 4/95 oral submissions by an accompanying person in opposition or opposition appeal proceedings cannot be made as a matter of right, but only with the permission and at the discretion of the board. According to the decision G 2/94 a board of appeal has a discretion to allow an accompanying person to make submissions during oral proceedings in ex parte proceedings, in addition to the complete presentation of a party's case by the professional representative.

In G 4/95 the Enlarged Board noted that the appointment of a professional representative by a party involved the authorisation and identification of the professionally qualified person who was responsible for the presentation to the EPO of all submissions made by the party. Such presentation of a party's case was the essential core of the function of a professional representative under Art. 133 EPC 1973. During oral proceedings, a professional representative was expected to present the entire case of the party that he or she represented.

As to the presentation of **facts or evidence** by an accompanying person, the Enlarged Board held that such oral submissions during oral proceedings – in addition to the complete presentation of the party's case by the professional representative – are not excluded under the EPC. They may be allowed under the overall discretionary control which the EPC gives to the EPO with respect to the filing of facts and evidence.

As to the question whether an accompanying person may make oral submissions during oral proceedings by way of **argument**, the Enlarged Board pointed out that Art. 133 EPC 1973 made no distinction between written and oral proceedings in connection with the requirements for representation. Thus a professional representative was responsible for all written and oral submissions made on behalf of the party who had appointed him.

The Enlarged Board further held that such oral submissions could not be made as a matter of right, but only with the permission of and at the discretion of the EPO. The following **criteria** should be considered by the EPO when exercising its discretion:

(i) The professional representative should request permission for such oral submissions to be made. The request should state the name and qualifications of the accompanying person and should specify the subject-matter of the proposed oral submissions.

(ii) The request should be made sufficiently in advance of the oral proceedings so that all opposing parties are able properly to prepare themselves in relation to the proposed oral submissions.

(iii) A request made shortly before or at the oral proceedings should, in the absence of exceptional circumstances, be refused unless each opposing party has agreed to the making of the oral submissions requested.

(iv) The EPO should be satisfied that oral submissions by an accompanying person were made under the continuing responsibility and control of the professional representative.

5.2. Application of the case law established by the Enlarged Board

5.2.1 Introduction

The decisions reported below show how the criteria established by the Enlarged Board have been applied, both in oral proceedings before the boards and when scrutinising decisions taken by the department of first instance.

In the following cases, the accompanying person was **not authorised** to make oral submissions: T 334/94 (request not made early enough); T 1208/06 (inventor not the proprietor); T 89/04 (classed as accompanying person – request made just three days before the oral proceedings); T 2135/08 (no information on experts' qualifications and subject-matter of oral submissions); T 1706/06 (request not made early enough – consent not given by the other party); T 302/02 (submissions of the expert of a party on subject-matter not specified in some detail beforehand); T 1676/08 (examination of the criteria – numerous procedural points raised); T 2552/11 (insufficient information to enable other party to prepare); T 520/07 (request made during oral proceedings – same submissions by same person at first instance – appeal proceedings separate); T 8/13 (person closely followed the whole case from beginning); T 484/17 (request not properly substantiated); T 634/16 (request not made early enough).

In the following cases, the accompanying person was **authorised** to make oral submissions: T 899/97 (request made early enough in circumstances); T 475/01 (persons accompanying both parties – one party representing itself); T 1212/02 (professional representative's colleague – pragmatic approach); T 754/08 (former patent attorney); T 1207/06 (presentation of the entire case – not established); T 919/07 (accompanying persons authorised if contribution relevant to discussion); T 1458/11 (trainee in professional representative's law firm – objection on appeal to scope of submissions not upheld); T 661/14 (right to speak on legal issues – no distinction between legal or technical issues)

In T 2198/15 the board allowed an accompanying person to make oral submissions on specific technical issues. Had permission been refused, it was likely that the respondent would have repeatedly requested that the oral proceedings be interrupted to enable it to consult the accompanying person (see also T 1212/02).

In the following decisions, the boards held that G 4/95 did not apply: T 621/98 (patent proprietor); T 1687/08 (lawyer).

5.2.2 Trainee patent attorneys

In T 1431/12, the reason given for Mr W.'s making submissions was that he was a trainee patent attorney familiar with the case. It was therefore unlikely that his submissions (unlike, for example, an expert's) would go beyond those of a patent attorney specialising in the subject-matter and so would not mean that the appellant would have to commission an expert to counter them. Given those circumstances, the board exercised its discretion to permit Mr W. to provide any technical information necessary to supplement the submissions made by the professional representative supervising him.

For a classic application of the requirements set out in G 4/95 to a party's contention that, since the accompanying person was preparing for the European qualifying examination, he ought to be given a training opportunity, see T 378/08, in which permission for the person to make oral submissions was refused.

5.2.3 Distinction between party to proceedings and accompanying person

In T 2036/12, the opposition division had refused to permit Mr S. to make submissions on the basis that they had to be considered those of a "technical expert". The board rejected its line of argument, observing that G 4/95 concerned "accompanying persons", i.e. people who were not parties to the proceedings and generally not entitled to make their own submissions as a matter of right, whereas Mr S., as the **proprietor's managing director** with the power to sign for it, was a direct party to the proceedings. It made no difference that a professional representative had likewise been present; as a party to the proceedings, he was entitled in his own right to make submissions in support of his case. The opposition division's refusal to permit his submissions was thus a breach of the right to be heard under Art. 113(1) EPC.

In T 621/98, during oral proceedings, the board was faced with the question of whether the patent proprietor, who was professionally represented, needed to announce in advance his intention to make submissions during the proceedings, pursuant to G 4/95. The board ruled that the patent proprietor was a party to the proceedings and as such was not to be treated as an accompanying person. As a party to the proceedings he had a right to take part in them.

In T 89/04 Mr D. was a vice president of the company OpenTV. Since the company ACTV, Inc. was recorded in the Register of European Patents as the patentee, OpenTV, which was a different legal person, was not a party to the proceedings in accordance with Art. 99(4) and 107, second sentence, EPC 1973. Mr D. was considered to be a person accompanying the representative.

In T 475/01 the board took the view that neither the EPC nor the above Enlarged Board decision could be held to imply that **a party that represented itself** in proceedings was